

An Act

ENROLLED SENATE
BILL NO. 378

By: Gollihare of the Senate

and

Pfeiffer of the House

An Act relating to bail bondsmen; amending 59 O.S. 2021, Section 1306.1, which relates to multicounty agent bondsmen applications; allowing Insurance Commissioner to approve certain bondsman to write bonds over certain deposit amount; allowing Commissioner to limit written bond amount; prohibiting Commissioner from releasing certain deposit for certain time period under certain circumstances; allowing Commissioner to reduce certain deposit bond amount written over certain deposit amount; requiring Commissioner to provide certain notice; updating statutory language; updating statutory reference; and providing an effective date.

SUBJECT: Bail bondsmen

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 1306.1, is amended to read as follows:

Section 1306.1. A. 1. An applicant for a multicounty agent bondsman license shall have been continually licensed as a professional bondsman in ~~the State of Oklahoma~~ this state for a minimum of two (2) years without suspension or having any unpaid forfeitures prior to the date of application.

2. In addition to the requirements prescribed in Sections 1305 and 1306 of this title, an applicant for a multicounty agent bondsman license shall submit to the Insurance Commissioner an annual audited financial statement prepared by an accounting firm or

individual holding a permit to practice public accounting in this state in accordance with the Statements on Auditing Standards promulgated by the Auditing Standards Board of the American Institute of Certified Public Accountants setting forth the total assets of the bondsman less liabilities and debts. For initial applications and for subsequent renewals of the license, the statement shall show a net worth of at least Two Hundred Fifty Thousand Dollars (\$250,000.00). The statement shall be current as of a date not earlier than ninety (90) days prior to submission of the application and the statement shall be attested to by an unqualified opinion of the accountant.

3. Multicounty agent bondsman applicants shall make a deposit with the ~~Insurance~~ Commissioner in the same manner as required of domestic insurance companies. The deposit shall not be less than One Hundred Thousand Dollars (\$100,000.00). Provided, however, any and all deposits made pursuant to paragraph 3 of subsection A of Section 1306 of this title shall count toward the fulfillment of any deposit amount required by this section. The deposit shall be subject to all laws, rules, and regulations as deposits by domestic insurance companies but in no instance, except as provided ~~herein~~ in this paragraph, shall a multicounty agent bondsman write bonds which equal more than twelve (12) times the amount of the deposit which the bondsman has submitted to the Commissioner; provided, however, any currently licensed professional bondsman in good standing with the Insurance Department and who, on the effective date of this act July 1, 2014, meets the provisions of the grandfather clause set forth in Section 1306 of this title and who otherwise meets the requirements of this section shall be afforded the same liability ratio as that of such grandfathered professional bondsman. The Commissioner may approve a multicounty agent bondsman to write bonds over twelve (12) times the amount of the deposit but not more than fifteen (15) times the amount of the deposit. Such deposit shall require the review and approval of the ~~Insurance~~ Commissioner prior to exceeding the maximum amount of Federal Deposit Insurance Corporation basic deposit coverage for any one bank or financial institution. In addition, a multicounty agent bondsman may make the deposit by purchasing an annuity through a licensed domestic insurance company in ~~the State of Oklahoma~~ this state. The annuity shall be in the name of the bondsman as owner with legal assignment to the ~~Insurance~~ Commissioner. The assignment form shall be approved by the Commissioner. If a bondsman exceeds the above

limitation, the bondsman shall be notified by the Commissioner that the excess shall be reduced or the deposit increased within ten (10) days of notification, or the license of the bondsman shall be suspended immediately after the ten-day period, pending a hearing on the matter.

4. The deposit provided for in this section shall constitute a reserve available to meet sums due on forfeiture of any bonds or recognizance executed by the bondsman.

5. Any deposit made by a multicounty agent bondsman pursuant to this section shall be released and returned by the Commissioner to the multicounty agent bondsman only upon extinguishment of all liability on outstanding bonds. Provided, however, the Commissioner shall have the authority to review specific financial circumstances and history of a multicounty agent bondsman, on a case-by-case basis, and may release a portion of the deposit if warranted. If a multicounty agent bondsman has increased his or her writing capacity to over twelve (12) times the amount of the deposit, the Commissioner shall not release a portion of the deposit for at least two (2) years following the approval of the increased writing capacity. If the multicounty agent bondsman has had any administrative action in the previous two (2) years, the Commissioner may deny such application. If the multicounty agent bondsman has two administrative actions after the application is approved, the liability ratio may be immediately reduced to twelve (12) times the amount of the deposit. The Commissioner shall provide electronic notice to the multicounty agent bondsman when the ratio is automatically reduced. The Commissioner may promulgate rules to effectuate the provisions of this paragraph.

6. No release of deposits to a multicounty agent bondsman shall be made by the Commissioner except upon written application and the written order of the Commissioner. The Commissioner shall have no liability for any such release to a multicounty agent bondsman provided the release was made in good faith.

B. The deposit provided in this section shall be held in safekeeping by the ~~Insurance~~ Commissioner and shall only be used if a bondsman fails to pay an order and judgment of forfeiture after being properly notified or shall be used if the license of a multicounty agent bondsman has been revoked. The deposit shall be

held in the name of the ~~Insurance~~ Commissioner and the bondsman. The bondsman shall execute an assignment or pledge of the deposit to the ~~Insurance~~ Commissioner for the payment of unpaid bond forfeitures.

C. Notwithstanding any other provision of Sections 1301 through 1341 of this title, the license of a multicounty agent bondsman is transferable upon the death or legal or physical incapacitation of the bondsman to the spouse of the bondsman or to such other transferee as the multicounty agent bondsman may designate in writing, and the transferee may elect to act as a multicounty agent bondsman for a period of one hundred eighty (180) days if the following conditions are met:

1. The transferee shall hold a valid license as a surety bondsman in this state; and

2. The asset and deposit requirements set forth in this section continue to be met.

At the end of the one-hundred-eighty-day period, the transferee shall be allowed to apply for a license as a multicounty agent bondsman, provided he or she has been continually licensed as a surety bondsman for at least five (5) years immediately prior to the date of application, notwithstanding the requirements of paragraph 1 of subsection A of this section.

D. A multicounty agent bondsman may appoint by power of attorney a licensed surety bondsman as his or her agent to execute bail bonds within any county in ~~the State of Oklahoma~~ this state. The number of bail bonds a multicounty agent bondsman may insure in counties other than the county he or she registers his or her license, pursuant to subsection A of Section 1320 of this title, shall not be limited by subsection B of Section 1320 of this title.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 26th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 30th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____